

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,
Complainant,
v.

DOCKET NO. 25-14

OAK WAY CARGO, LLC,
Respondent.

**COMPLAINANT'S RESPONSE IN OPPOSITION TO
RESPONDENT'S CROSS-MOTION FOR PROTECTIVE
ORDER AND REPLY IN SUPPORT OF ITS MOTION TO COMPEL**

Complainant, Way2Go Cargo Corp. ("Way2Go" or "Complainant") by and through undersigned counsel hereby files its Response in Opposition to Respondent, Oak Way Cargo, LLC's ("Oak Way" or "Respondent") Cross Motion for Protective Order and Reply in Support of its Motion to Compel, and in support thereof states as follows:

INTRODUCTION

Respondent's Cross-Motion to Compel is a late attempt to block discovery and serves only as a tactical delay as the already extended discovery deadline approaches. Despite Complainant's good-faith efforts to confer which included agreeing to amend thirteen distinct deposition topics, Respondent failed to appear for its duly noticed deposition on February 4, 2026. Instead, Respondent relies on the meritless argument that a prior, narrow evidentiary hearing in District Court precludes a full discovery deposition in this administrative proceeding. As detailed below, Respondent's representative has formally testified in this matter, and Complainant is entitled to explore the full range facts and information alleged to support Complainant's claims against Respondent for violation of the Shipping Act.

BACKGROUND

1. On November 20, 2025, the Commission entered the Scheduling Order, requiring that Fact Discovery be complete by February 5, 2026, with the Close of Discovery including Depositions scheduled for February 26, 2026.

2. On February 3, 2026, the Parties filed a Joint Motion to Extend the Scheduling Order Deadline, which the Commission granted on February 4, 2026, which extended the deadlines for Fact Discovery to March 9, 2026, and the Close of Discovery set for March 30, 2026.

3. On January 15, 2026, Complainant formally requested to schedule the deposition of Respondent's Corporate Representative and provided a copy of the Rule 30(b)(6) or 46 C.F.R. § 502.143(b)(6) areas of inquiry for deposition.

4. On January 27, 2026, Complainant filed its Motion to Compel Deposition of Respondent's Corporate Representative.

5. The following day, on January 28, 2026, Complainant filed its Notice of Taking Deposition for Respondent's Corporate Representative, specifically noticing the deposition to take place on February 4, 2026.

6. On February 2, nearly three weeks after Complainant provided Respondent with its areas of inquiry for deposition, counsel for Respondent finally conferred with Complainant's counsel to discuss the objections to the areas of inquiry.

7. Additionally, on February 2, 2026, just two days before the deposition of Respondent's Corporate Representative, Respondent filed its Response to Complainant's Motion to Compel and Cross-Motion for Protective Order ("MPO").

ARGUMENT

I. Respondent's Cross-Motion for Protective Order is an Improper Delay Tactic Because it Lacks a Good-Faith Attempt to Obtain a Protective Order and it

Improperly Relies on Narrow Testimony from a Separate Proceeding To Excuse Respondent's Representative From Appearing For Deposition

It is well settled law that a motion for protective order does not automatically stay deposition or other discovery. *Goodwin v. City of Boston*, 118 F.R.D. 297, 297 (D. Mass. 1988). That is, the mere filing of a motion for protective order does not excuse a party's attendance at a deposition, especially when the objecting party does not make a realistic attempt to secure a protective order. *Spano v. Satz*, No. 09-60255-CIV, 2010 WL 11515690, at *2 (S.D. Fla. May 3, 2010) (citing *Barnes v. Madison*, 79 Fed. Appx. 691, 707 (5th Cir. 2003)). Filing a motion for a protective order just three days prior to a deposition has been held to lack the good faith necessary to excuse attendance. *See id.* The burden lies on the objecting party to obtain an order to remove the duty to appear for a noticed deposition, not merely file a motion, because simply filing a motion for protective order does not eliminate the duty to appear. *Pioche Mines Consol., Inc. v. Dolman*, 333 F.2d 257, 269 (9th Cir. 1964).

Here, Respondent conveniently waited nearly three weeks after receiving the areas of inquiry, and only two days before the duly noticed deposition, to file its motion. Furthermore, after counsel conferred on the areas of inquiry, Complainant agreed to amend 13 areas of examination on February 2, 2026. Despite this cooperation, Respondent filed its Cross-Motion on that same day, arguing that the inquiries exceed the issues before this Commission.

Moreover, in its MPO, Respondent improperly contends that leave is required under 46 C.F.R. § 502.143(a)(2) before deposing a witness who has already testified. This position is meritless because Respondent's corporate representative has never sat for a 46 C.F.R. § 502.143(b)(6) in this or any other related matter. Respondent continues to disregard the fact that the injunction proceedings pending before the District Court, while related, are materially different in scope. The Commission maintains exclusive jurisdiction to adjudicate the merits of

Complainant's claim against Respondent for Shipping Act violations, while the District Court may only act to preserve the status quo through injunctive relief until the Commission renders a decision. *See Schiavo ex rel. Schindler v. Schiavo*, 403 F.3d 1223, 1231 (11th Cir. 2005). Likewise, Respondent's position disregards the fact that the District Court hearing only provided Complainant the opportunity to cross-examine Respondent's representative on the narrow topics covered at the hearing. Since cross-examination at an evidentiary hearing for a preliminary injunction is more limited in scope than a section 502.143(b)(6) deposition, it is disingenuous of Respondent to claim Complainant has already had a full opportunity to examine the witness. Complainant is entitled to a formal deposition to explore the full range of relevant facts in this administrative proceeding.

Throughout its filings Respondent continues to conflate the distinct roles that the Commission and District Court serve. For instance, Respondent incorrectly asserts that inquiries regarding the Temporary Restraining Order ("TRO") are improper. Since the TRO temporarily enjoined Respondent's ongoing violations of the Shipping Act, it is entirely proper for Complainant to inquire into the measures Respondent took to comply with that order. Any failure to take such measures is relevant evidence of continual violations of the Shipping Act.

Furthermore, since the evidentiary hearing in District Court ended on October 27, 2025, written discovery has taken place, revealing new information regarding Respondent's ongoing violations and the resulting injury to Way2Go. To this end, Respondent's contention that the areas of inquiry exceed the scope of the matters before the Commission, fails to recognize that in light of this new information, Complainant's areas of inquiry are proportional and relevant to the ongoing nature of Oak Way's violations of the Shipping Act.

II. Respondent's Procedural Objections in Its Response to the Motion to Compel are Moot Because of its Willful Failure to Appear for Deposition

Respondent contends that the Motion to Compel Deposition is procedurally improper however, this position is moot as the deposition was duly noticed for February 4, 2026, and Respondent failed to appear. *A true and correct copy of the Certificate of Non-Appearance is attached hereto as **Exhibit “A.”*** Despite having ample time to object to and confer on the areas of inquiry, Respondent waited two days before the deposition of its corporate representative to confer on the areas of inquiry.

CONCLUSION

For the foregoing reasons, Complainant respectfully requests that the Commission overrule Respondent’s objections, compel the deposition of Respondent’s corporate representative within ten days, and require Respondent to pay the reasonable attorney’s fees and expenses incurred in bringing responding to the Motion for Protective Order.

Dated: February 10, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

I **HEREBY CERTIFY** that a true and correct copy of the foregoing was filed via electronic mail upon the Office of the Secretary at secretary at secretary@fmc.gov and served upon all counsel of record for OAK WAY CARGO, LLC at zkass@b2b.legal on this 10th day of February 2026.

BY: /s/ Jennifer S. Roldan
Jennifer S. Roldan, Esq.